

most imperative circumstances, circumstances which in view of the flexible procedures of the Federal Rules we cannot now anticipate,¹⁹ can the right to a jury trial of legal issues be lost through prior determination of equitable claims. See *Leimer v. Woods*, 196 F. 2d 828, 833-836. As we have shown, this is far from being such a case.

Respondent claims mandamus is not available under the All Writs Act, 28 U. S. C. § 1651. Whatever differences of opinion there may be in other types of cases, we think the right to grant mandamus to require jury trial where it has been improperly denied is settled.²⁰

The judgment of the Court of Appeals is

Reversed.

MR. JUSTICE FRANKFURTER took no part in the consideration or decision of this case.

MR. JUSTICE STEWART, with whom MR. JUSTICE HARLAN and MR. JUSTICE WHITTAKER concur, dissenting.

There can be no doubt that a litigant is entitled to a writ of mandamus to protect a clear constitutional or statutory right to a jury trial. But there was no denial of such a right here. The district judge simply exercised his inherent discretion, now explicitly confirmed by the Federal Rules of Civil Procedure, to schedule the trial of an equitable claim in advance of an action at law. Even an abuse of such discretion could not, I think, be attacked

¹⁹ For an example of the flexible procedures available under the Federal Rules, see *Ring v. Spina*, 166 F. 2d 546, 550.

²⁰ *E. g.*, *Ex parte Simons*, 247 U. S. 231, 239-240; *Ex parte Peterson*, 253 U. S. 300, 305-306; *Bereslavsky v. Caffey*, 161 F. 2d 499 (C. A. 2d Cir.); *Canister Co. v. Leahy*, 191 F. 2d 255 (C. A. 3d Cir.); *Black v. Boyd*, 248 F. 2d 156, 160-161 (C. A. 6th Cir.). Cf. *Bruckman v. Hollzer*, 152 F. 2d 730 (C. A. 9th Cir.). But cf. *In re Chappell & Co.*, 201 F. 2d 343 (C. A. 1st Cir.). See also *La Buy v. Howes Leather Co.*, 352 U. S. 249.